



SPONSOR: Rep. Wilson-Anton & Rep. S. Moore
Reps. Phillips, Burns, Lambert

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 249

AN ACT RELATING TO TAXES IN THE 2025-2026 TAX YEAR.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Section 1. Notwithstanding any provision of law to the contrary:

(1) For purposes of this section:

a. "New construction" means real property where the completion of a building during the 2024-2025 tax year required the supplemental assessment of the property and corresponding update to the county assessment rolls.

b. "Previously assessed value" means the assessed value of real property used for the 2024-2025 tax year.

(2)a. Each school district shall issue a new tax collection warrant to the county for the 2025-2026 tax year using the previously assessed value of all real property subject to the local school tax levied under Chapter 19 of Title 14 of the Delaware Code.

b. The school district must deliver the tax collection warrant issued under paragraph (2)a. of this section to the county no later than 10 business days after [the effective date of this Act].

(3)a. Upon receipt of the tax collection warrant required under paragraph (2) of this section, the county shall void all tax bills already issued to taxpayers in the county for tax year 2025-2026 and reissue tax bills for tax year 2025-2026 that total the sum of all of the following:

1. The amount of property tax due on property subject to county taxation under Part V of Title 9 of the Delaware Code, calculated using the previously assessed value of the real property.

2. The amount of the local school tax due under the tax collection warrant issued under paragraph (2) of this section.

b. Paragraph (3)a. of this section does not apply to tax bills for new construction.

(4)a. The deadline for payment of the tax bills reissued under paragraph (3)a. of this section, including any balance due because the taxpayer's tax bill is higher after adjustment under this section, is extended to October 30, 2025.

23 b. Interest and penalties for unpaid taxes due under this section may not be charged until after October 30,
24 2025.

25 (5) A county shall refund or credit any overpayment of taxes for the 2025-2026 tax year to each taxpayer who
26 pays the amount due under a tax bill that is subsequently adjusted under this section.

27 (6) A school district may request and borrow from State Division I funds in the event of a cash flow shortfall
28 of local school funds due to the extension of the deadline for tax payments for the 2026 fiscal year.

SYNOPSIS

This Act requires counties to void all tax bills already issued to taxpayers in the county for the 2025-2026 tax year and to reissue property and school tax bills for the 2025-2026 tax year using the previously assessed value of the real property for all property subject to county taxation under Part V of Title 9 and all property subject to the local school tax under Chapter 19 of Title 14. This requirement does not apply to tax bills for new construction completed during the 2025-2026 tax year.

Within 10 days of enactment of this Act, school districts must deliver a new tax collection warrant to the county calculated using the previously assessed value of the real property for school tax, so tax bills for the 2025-2026 tax year can be reissued.

The deadline for payment of the reissued tax bills is extended to October 30, 2025, and counties must refund or credit overpayments of taxes for the 2025-2026 tax year to taxpayers who submit payment in accordance with previous tax bill.

A school district may request and borrow from State Division I funds in the event of a cash flow shortfall of local school funds due to the extension of the deadline for tax payments for the 2026 fiscal year.